



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
DATE: 3/27/2026
BY: **MA. JIMENA B. JUTILO**
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 33RD REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON MARCH
17, 2026

PRESENT:

Hon. Jane V. Plaza Municipal Vice- Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Michael C. Escuyos		SB Member

ON OFFICIAL BUSINESS:

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ORDINANCE NO. 38
Series of 2026

**"AN ORDINANCE PROVIDING FOR THE CLEARING AND PROPER MAINTENANCE OF LOW HANGING
POWER LINES, INTERNET WIRES, TELEPHONE WIRES AND OTHER SIMILAR WIRES CROSSING
ROADWAYS WITHIN THE TERRITORIAL JURISDICTION OF THE MUNICIPALITY OF CARMEN, SURIGAO
DEL SUR PRESCRIBING STANDARDS FOR THEIR INSTALLATION AND MAINTENANCE, ESTABLISHING
A JOINT TASK FORCE, IMPOSING PENALTIES FOR VIOLATIONS AND FOR OTHER PURPOSES"**

Author: Hon. Harvey S. Manawatao

Enacted: All Members Present

EXPLANATORY NOTE

WHEREAS, the 1987 Philippine Constitution mandates the Local Government Units to promote public safety, health and welfare within the territorial jurisdiction of the Municipality of Carmen, Surigao del Sur;

WHEREAS, low-hanging, sagging, damaged or unconsolidated overhead wires including power lines, internet cable wires, telephone wires and cable TV lines pose serious risk to public safety causing road accidents, electrical hazards and obstruction of emergency response access;

WHEREAS, spaghetti wires and improperly installed overhead conductors also detract from the aesthetic order of public spaces hindering the municipality's efforts to maintain clean, orderly, livable communities consistent with the City of Pasig and other cities successful initiatives to address similar concerns;

WHEREAS, Republic Act No. 7160 otherwise known as the Local Government Code of 1991 empowers the Local Government Unit to enact Ordinances necessary to promote the general welfare including the regulation of public utilities and services operating within their areas;

WHEREAS, existing National standards from the Department of Public Works and Highways (DPWH), Energy Regulatory Commission (ERC) and the National Telecommunication (NTC) prescribe minimum clearance requirements for overhead wires which some utility providers and private individuals have failed to comply;

WHEREAS, the City of Pasig Ordinance No 1,0 Series of 2019 and its implementing guidelines have demonstrated that establishing a Joint Task Force and setting a clear technical standard and imposing graduated penalties are effective measures to ensure compliance and address wire-related hazards;

WHEREAS, utility companies, service providers and private individuals have a shared responsibilities to maintain safe and orderly overhead wires and coordinated action between Government Agencies, stakeholders and the general public that is essential to achieve this goal;

WHEREAS, the Sangguniang Bayan of Carmen, Surigao del Sur through the concerned Committee has conducted consultations with relevant concerned Offices, Barangay Officials and community representatives who have expressed support for the enactment of a comprehensive Ordinance to regulate overhead wires;

WHEREAS, the Sangguniang Bayan have recognized the urgency of regulating and monitoring the installation and maintenance of utility lines to prevent hazards;

WHEREAS, it is the duty and responsibility of the Local Government to protect its constituents and ensure the safe and orderly use of public spaces;

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

SECTION 1. Short Title- This Ordinance shall be known as the ANTI-LOW-HANGING WIRES AND ORDERLY INSTALLATION ORDINANCE of the Municipality of Carmen, Surigao del Sur.

SECTION 2. Declaration of Policy- It is hereby the policy of the Municipality of Carmen, Surigao del Sur to ensure public safety, maintain orderly roadways and public spaces, prevent accidents and promote aesthetic order by regulating overhead wires consistent with the City of Pasig's framework. All Utility Companies, Service Providers and Private Owners shall be held accountable for proper installation, maintenance and consolidation of wires with active coordination between Government and stakeholders.

SECTION 3. Definition of Terms- The following words are used in this Ordinance:

1. Wires- refers to power lines, internet cables, telephone wires, cable TV lines, Fiber Optic Cables and any other overhead conductors or supporting fixtures crossing public roadways, sidewalks or easements.

- 2. Utility Companies/Service Providers (UCPs)- entities with a franchise, permit or authorization to operate telecommunication, power or similar services within the municipality including both private and government-owned corporations.
- 3. Low Hanging Wires- wires with vertical clearance below the prescribed standards or those that are sagging, loose, damaged or improperly secured including spaghetti wires, multiple unconsolidated wires on poles or across roadways.
- 4. Roadways- all public streets, roads, alleys, thoroughfares and access roads within the territorial jurisdiction of this municipality.
- 5. Joint Task Force- the inter-agency body established under Section 4 hereof to oversee implementation.

SECTION 4. Establishing of the Carmen Joint Task Force on Orderly Utility Wires- A Carmen Joint Task Force on Orderly Utility Wires is hereby created to manage and enforce this Ordinance which is compose the following:

- | | |
|-------------------|---|
| Chairperson: | - Municipal Mayor or any representative |
| Vice Chairperson: | - Municipal Planning and Development Officer – MPDO |
| Members: | - SB Member- Chairman Committee on Power Utilities |
| | SB Member- Chairman Committee on Laws |
| | Municipal Engineer |
| | MENRO |
| | All Punong Barangays |
| | Representative from the DPWH |
| | Representative from the ERC – if available |
| | Representative from National Telecommunication |
| | Commission – if available |
| | Representative from SURSECO II |
| | Representative from SMART Communications |
| | Representative from Globe Communications |
| | Representative from TETCO |
| | CSO-FOC President |
| | Other Representatives chosen by the Municipal Mayor |

SECTION 4A: Powers and Functions-

- 1. Conduct regular Joint Inspections quarterly in high traffic areas and twice a year in all areas.
- 2. Issue notices of violation and coordinate corrective actions.
- 3. Approve wire consolidation plans.
- 4. Oversee the removal of abandoned/non-operational wires.
- 5. Submit annual progress reports to the Sangguniang Bayan.

SECTION 5. Responsibilities-

- 1. UTILITY COMPANIES/SERVICE PROVIDERS

- a) Submit a comprehensive inventory of all wires and poles with the municipality to the Carmen Joint Task Force Orderly Utility Wires (CJTF-OUW) for a period of sixty (60) days upon the effectivity of this Ordinance.
- b) Conduct a quarterly self-inspection and submit update reports to the CJTF-OUW.
- c) Consolidate all wires into designated dominant poles, as identified by the CJTW-OUW within 6 months of notice and no new poles shall be installed without the knowledge of the CJTW-OUW.
- d) Repair, elevate or remove low-hanging/damaged wires within seventy-two (72) hours of discovery or notification for immediate safety hazards or fifteen (15) calendar days for non-hazardous violations.
- e) Removed all abandoned/non-operational wires and unused poles within sixty (60) calendar days of notice.
- f) Provide contact information for 24/7 emergency response teams to the CJTW-OUW.

2. CARMEN JOINT TASK FORCE- ORDERLY UTILITY WIRES

- a) Publish a master's list of designated dominant poles and wire routing plans within ninety (90) calendar days.
- b) Issue written notices including photos of violations via in person delivery.
- c) Coordinate with the barangays to monitor violations in their areas.
- d) Authorize Municipal Teams or contracted other Service Providers to perform corrective works if the Utility Companies/Service Providers (UCP'S) failed to comply with costs charged to the responsible party.

3. PRIVATE INDIVIDUALS

- a) Obtain a Private Wire Installation Permit from the Municipal Engineering Office before installing any wires crossing public areas.
- b) Ensure compliance with clearance standards and consolidate wires with adjacent utility lines where possible.
- c) Remove unauthorized or non-compliant wires within fifteen (15) days of notice.

SECTION 6. Clearance and Installation Standards- Technical Specifications:

- a) Paved Roadways for all vehicles- minimum of twenty-two (22) feet above the surface.
- b) Sidewalks Pedestrian Areas- minimum of eighteen (18) feet above the surface.
- c) Unpaved Roads/Alleys- minimum of sixteen (16) feet above the surface.
- d) Intersections- minimum of twenty (20) feet above the surface.
- e) Wires shall be installed in a neat, parallel manner- no coiling, sagging or attachment to trees, signage or non-designated structures.

SECTION 7. Enforcement Procedures-

FIRST NOTICE- a written warning within seventy-two (72) hours compliance deadline for hazards and fifteen (15) days for non-hazards.

SECOND NOTICE- issued if non-compliant after deadline, includes order for immediate correction and penalty notice.

ENFORCEMENT ACTION- if still non-compliant, the CJTW- OUW shall arrange for removal/correction of the responsible party's expense. The Municipal Treasurer shall issue a statement of costs which must be paid within thirty (30) calendar days to avoid additional penalties.

SECTION 8. Penalties- Adopted graduated penalties aligned with the existing laws:

A. FOR UTILITY COMPANIES/SERVICE PROVIDER

- | | | |
|------------------------------|---|--|
| FIRST OFFENSE | - | A fine of One thousand Pesos (Php1,000.00) plus mandatory compliance within three (3) days |
| | - | A temporary hold on new permit applications until compliant |
| SECOND OFFENSE | - | A fine of Two Thousand Pesos (Php2,000.00) plus a suspension of existing permits for fifteen (15) days |
| | - | Required presentation of a corrective action plan to the CJTW- OUW |
| THIRD and SUCCEEDING OFFENSE | - | A fine of Two Thousand Five Hundred Pesos (Php2,500.00) plus a suspension of permit of not less than one (1) month |

B. FOR PRIVATE INDIVIDUALS

- | | | |
|---------------------------------------|---|---|
| FIRST OFFENSE | - | A written notice issued by the CJTW- OUW plus a mandatory compliance within seven (7) calendar days |
| SECOND OFFENSE | - | A fine of One Thousand Pesos (Php1,000.00) plus a mandatory compliance within seven (7) calendar days |
| THIRD OFFENSE and SUCCEEDING OFFENSES | - | A fine of Two Thousand Pesos (Php2,000.00) plus a mandatory compliance within seven (7) calendar days |

ADDITIONAL PENALTY- For every day of continued non-compliance after the deadline, an additional fine of Twenty- Five Pesos (Php25.00) for PRIVATE INDIVIDUALS and Fifty Pesos (Php50.00) for UTILITY COMPANIES/SERVICE PROVIDERS shall be imposed.

SECTION 9. Incentives for Compliance- The Utility Companies/Service Providers that complete wire consolidation plans ahead of schedule or maintain zero violations for one (1) year may be eligible for priority processing of future permit or recognition from the Municipal Government.

SECTION 10. Implementing Rules and Regulations (IRR)- The Carmen Joint Task Force on Orderly Utility Wire (CJTW-OUW) in consultation with relevant line agencies and stakeholders shall promulgate the IRR within sixty (60) calendar days upon the approval of this Ordinance. The IRR shall detail permit requirements, inspection checklists, consolidation guidelines and emergency response protocols.

SECTION 11. Separability Clause- If any provision of this Ordinance is declared invalid or unconstitutional, the remaining provisions shall continue to be in full force and effect.

SECTION 12. Repealing Clause- All Ordinances, Resolutions, Executive Orders, Rules and Regulations or parts thereof inconsistent with this Ordinance are hereby repealed or modified accordingly.

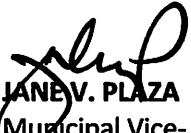
SECTION 13. Effectivity Clause- This Ordinance shall take effect twenty- one (21) days after its posting in at least 3 conspicuous places in the municipality.

ENACTED this 17th day of March, 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


JANE V. PLAZA
Municipal Vice- Mayor/
Presiding Officer

APPROVED:


NESTOR S. VALEROSO
Municipal Mayor
9-27-2026